

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF MALTYZOV AND OTHERS v. RUSSIA

(Applications nos. 18089/20 and 17 others –
see appended list)

JUDGMENT

STRASBOURG

10 November 2022

This judgment is final but it may be subject to editorial revision.



In the case of Maltyzov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*
Andreas Zünd*,*
Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 20 October 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

6. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They relied, expressly or in substance, on Article 6 § 1 of the Convention, which reads as follows:

Article 6 § 1

> "In the determination of ... any criminal charge against him, everyone is entitled to a fair ... hearing ... by an independent and impartial tribunal established by law."

7. The relevant principles of the Court's case-law concerning the requirement of impartiality under Article 6 § 1 of the Convention can be found in the leading case of *Karelin v. Russia* (no. 926/08, §§ 51-57, 20 September 2016, with further references). In that case the Court assessed the national rules of administrative procedure and concluded that the statutory requirements allowing for the national judicial authorities to consider an administrative offence case which falls within the ambit of Article 6 of the Convention under its criminal limb, in the absence of a prosecuting authority, was incompatible with the principle of objective impartiality set out in Article 6 of the Convention.

8. Having examined all the material submitted to it, including having studied the compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question and concluded that it should be exceptionally considered to have been suspended for three calendar months in total whenever it either started to run or was due to expire at any time between 16 March and 15 June 2020), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

9. These complaints are therefore admissible and disclose a breach of Article 6 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Frumkin v. Russia*, no. 74568/12, §§ 81-142, 5 January 2016, as regards disproportionate measures taken by the authorities against organisers and participants of public assemblies, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful administrative arrest.

IV. REMAINING COMPLAINTS

11. As regards the complaints under Article 6 of the Convention about unfairness of proceedings, submitted by the applicants in applications nos. 18089/20, 18180/20, 18188/20, 18197/20, 18199/20, 18232/20, 18233/20, 18235/20, 19482/20, 19485/20, 20477/20, 26232/20, 26776/20 and 26782/20, the Court, having reached the conclusion about the lack of impartiality of the tribunal under Article 6 of the Convention (see paragraph 9 above), does not consider it necessary to examine them separately.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

13. Regard being had to the documents in its possession and to its case-law (see, in particular, *Kuratov and Others v. Russia* [Committee], nos. 24377/15 and 2 others, 22 October 2019), the Court considers it reasonable to award the sums indicated in the appended table.

14. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately further complaints in applications nos. 18089/20, 18180/20, 18188/20, 18197/20, 18199/20, 18232/20, 18233/20, 18235/20, 19482/20, 19485/20, 20477/20, 26232/20, 26776/20 and 26782/20 about unfair administrative-offence proceedings;

3. *Holds* that the applications disclose a breach of Article 6 § 1 of the Convention concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 10 November 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 6 § 1 of the Convention
(lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	18089/20 30/03/2020	**Denis Germanovich MALTYZOV** 1991	Pomazuyev Aleksandr Yevgenyevich Vilnius	fine of RUB 10,000	Moscow City Court on 06/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 03/08/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 06/11/2019 (appeal decision).	3,900
2.	18166/20 11/03/2020	**Alik Mikhaylovich SHARAPOV** 1958	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 18/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 18/09/2019 (appeal decision).	3,900
3.	18180/20 11/03/2020	**Leonid Mikhaylovich MARIN** 1977	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 24/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence;	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 24/09/2019 (appeal decision).	
4.	18185/20 11/03/2020	**Nikolay Nikolayevich SKOROKHODOV** 1991	Memorial Human Rights Centre Moscow	fine of RUB 15,000	Moscow City Court on 16/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 16/09/2019 (appeal decision).	3,900
5.	18188/20 11/03/2020	**Sergey Dmitriyevich MAKAROV** 1994	Memorial Human Rights Centre Moscow	fine of RUB 20,000	Moscow City Court on 20/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 20,000/ Moscow City Court on 20/09/2019 (appeal decision).	3,900
6.	18193/20 11/03/2020	**Yelena Aleksandrovna MOZGOVAYA** 1987	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 20/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence;	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 20/09/2019 (appeal decision).	
7.	18197/20 11/03/2020	**Yevgeniy Dmitriyevich SOKOL** 1990	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 18/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 18/09/2019 (appeal decision).	3,900
8.	18199/20 11/03/2020	**Dmitriy Aleksandrovich CHULKOV** 1989	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 16/12/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 16/12/2019 (appeal decision).	3,900
9.	18201/20 11/03/2020	**Vladimir Borisovich SAVENKOV** 1982	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 20/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence;	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 20/09/2019 (appeal decision).	
10.	18232/20 19/03/2020	**Anton Andreyevich TARAKANOV** 1981	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 04/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 03/08/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 04/10/2019 (appeal decision).	3,900
11.	18233/20 19/03/2020	**Nadezhda Borisovna SUFTINA** 1973	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 03/08/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 02/10/2019 (appeal decision).	3,900
12.	18235/20 19/03/2020	**Georgiy Viktorovich LOBANOV** 1992	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 08/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence;	3,900

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						Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 08/10/2019 (appeal decision).	
13.	19482/20 23/03/2020	**Nikolay Vladimirovich ZIMIREV** 1984	Molokanova Tatyana Valeryevna Moscow	fine of RUB 15,000	Moscow City Court on 24/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 10/08/2019 for the purpose of drawing up a record of administrative offence; detained for more than 3 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 10/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 24/09/2019 (appeal decision).	3,900
14.	19485/20 16/03/2020	**Yuriy Vladimirovich MANOKHIN** 1998	Memorial Human Rights Centre Moscow	fine of RUB 10,000	Moscow City Court on 16/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 03/08/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Moscow City Court on 16/09/2019 (appeal decision).	3,900
15.	20477/20 15/04/2020	**Aleksey Artemovich GEVORKYAN** 1997	Gilmanov Mansur Idrisovich Podolsk	fine of RUB 15,000	Moscow City Court on 18/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 03/08/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours;	3,900

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						Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 18/11/2019 (appeal decision).	
16.	26232/20 29/03/2020	**Oksana Sergeyevna ZAVGORODNYAYA** 1987	Gak Irina Vladimirovna Rostov-on-Don	fine of RUB 10,000	Rostov Regional Court on 27/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Arrest and detention on 10/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 10/08/2019 in Rostov-on-Don in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Rostov Regional Court on 27/09/2019 (appeal decision).	3,900
17.	26776/20 02/04/2020	**Albert Radistovich DAVYDOV** 1972	Bayturina Svetlana Nikolayevna Moscow	fine of RUB 15,000	Moscow City Court on 04/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 10/08/2019 for the sole purpose of drawing up a record of administrative offence; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 10/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 04/10/2019 (appeal decision).	3,900
18.	26782/20 02/04/2020	**Stanislav Sergeyevich TURUSOV** 1990	Bayturina Svetlana Nikolayevna Moscow	fine of RUB 15,000	Moscow City Court on 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 for the sole purpose of drawing the record of administrative offence; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under	3,900

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						article 20.2 § 6.1 of CAO for participation on 27/07/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 15,000/ Moscow City Court on 02/10/2019 (appeal decision).	

[1] Plus any tax that may be chargeable to the applicants.